

TENTATIVE RULING

Case: **Davis Medical Venture LLC v. Gary**
Case No. CV2025-2253

Hearing Date: **March 11, 2026** **Department Eleven** **9:00 a.m.**

Defendants Donna Gary and Dielji, Inc.'s motion for relief from waiver of objections is **DENIED WITHOUT PREJUDICE**. (Code Civ. Proc., §§ 2030.290, 2031.300.) Defendants have not shown that they served responses in *substantial compliance* with the applicable discovery statutes. (Code Civ. Proc., §§ 2030.290, subd. (a)(1), 2031.300, subd. (a)(1); see Finnerty decl., ¶ 4, Exhibit A.) Further, defendants have not established that their failure to serve timely responses was the result of mistake, inadvertence, or excusable neglect. (Code Civ. Proc., §§ 2030.290, subd. (a)(2), 2031.300, subd. (a)(2); see also *City of Fresno v. Superior Court* (1988) 205 Cal.App.3d 1459, 1467; *Baratti v. Baratti* (1952) 109 Cal.App.2d 917, 921; Finnerty decl., ¶ 4; Murtha decl., ¶¶ 9-10, Exhibits D & E.)

If no hearing is requested, this tentative ruling is effective immediately. No formal order pursuant to California Rule of Court 3.1312 or further notice is required.

TENTATIVE RULING

Case: **Wu v. General Motors, LLC**
Case No. CV2024-1762

Hearing Date: **March 11, 2026** **Department Fourteen** **9:00 a.m.**

Demurrer:

The Court rules on defendant General Motors, LLC's demurrer to plaintiff's first amended complaint as follows:

- Defendant's demurrer to the sixth cause of action for fraudulent inducement – concealment on the ground that it is time-barred by the three-year statute of limitations is **OVERRULED**. (Code Civ. Proc., §§ 430.10, subd. (e); see *Bell v. Bank of California* (1908) 153 Cal. 234, 245.) The Court finds that plaintiff's delay in discovering the alleged fraud was excusable and that the delayed discovery doctrine applies. (*Jolly v. Eli Lilly & Co.* (1988) 44 Cal.3d 1103, 1110 ["Under the discovery rule, the statute of limitations begins to run when the plaintiff suspects or should suspect that her injury was caused by wrongdoing, that someone has done something wrong to her."]; *Johnson v. Ehrigott* (1934) 1 Cal.2d 136, 137-138; FAC, ¶¶ 39, 42, 46, 85, 86.) The Court also notes that the date plaintiff discovered defendant's alleged fraud is not identified in the first amended complaint; thus, the Court cannot determine if plaintiff complied with the three-year statute of limitations set forth in Code of Civil Procedure section 338. (See *Jolly, supra*, 44 Cal.3d at p. 1112 [when a plaintiff reasonably should have discovered facts for purposes of the accrual of a cause of action may only be decided as a matter of law if the allegations in the complaint and facts properly subject to judicial notice can support only one reasonable conclusion]; FAC, ¶¶ 39, 42.)
- Defendant's demurrer to the sixth cause of action for fraudulent inducement – concealment on the ground that it fails to allege facts sufficient to state a cause of action is **OVERRULED**. (Code Civ. Proc., §§ 430.10, subd. (e).) The Court finds that plaintiff has sufficiently alleged facts to state this cause of action. (See *Dhital v. Nissan North America, Inc.* (2022) 84 Cal.App.5th 828, 843 – 844; see also *Alfaro v. Community Housing Improvement System & Planning Assn., Inc.* (2009) 171 Cal.App.4th 1356, 1382, 1384 ["Less specificity should be required of fraud claims "when 'it appears from the nature of the allegations that the defendant must necessarily possess full information concerning the facts of the controversy..."]"; *Committee on Children's Television, Inc. v. General Foods Corp.* (1983) 35 Cal.3d 197, 217; FAC, ¶¶ 21, 24, 25, 30, 31, 33, 34, 37, 39, 45, 46, 83 – 87, 89 – 91 and 93.)
- Defendant's demurrer to the sixth cause of action for fraudulent inducement – concealment on the ground that it fails to allege a transactional relationship giving rise to a duty to disclose is **OVERRULED**. (Code Civ. Proc., §§ 430.10, subd. (e).) The Court finds that plaintiff has sufficiently alleged facts to state this cause of action. (*Bigler-Engler v. Breg, Inc.* (2017) 7 Cal.App.5th 276, 310-311; *LiMandri v. Judkins* (1997) 52 Cal.App.4th 326, 336, 337 [a duty to disclose may arise from the relationship between seller and buyer or parties entering into any kind of contractual agreement]; see *Dhital, supra*, 84 Cal.App.5th at pp. 843 – 844 ["Suppression of a material fact is actionable